

acting for him in other ways. But the doctrine of absolution was soon definitely negated. Second, that no wrong will be imputed to the king. In this view, it is a senseless fiction. A more rational explanation is that, although the king may do wrong, he is protected by his immunity from suit. If he does wrong through an agent, the agent is liable, although the king is not.

The state, of course, can act only through agents. The agent, in committing a tort, may be regarded either as not acting for the state, in which view the agent alone would be liable, or as acting, although unlawfully, for the state, in which view both principal and agent would be liable, although the principal would be protected by the immunity of the state from suit. In either view, the liability of the agent results from the fact that his act is in itself unlawful, and does not rest upon lawful state authority. Such authority cannot exist if forbidden by a higher authority. Thus, a statute cannot afford lawful authority if contrary to the constitution.